

#	Case Name	Tentative Ruling
101	Aleksanyan vs. FCA US, LLC, 2023-01347934	MOTION FOR TERMINATING SANCTIONS Defendant, FCA US, LLC, moves for an order imposing terminating sanctions or issue, evidentiary, and monetary sanctions in the amount of \$1,500, against Plaintiffs, Khachatur Aleksanyan and Artur Aleksanyan and their attorneys of record, Tionna Carvalho and Tim Butler of Strategic Legal Practices, for Artur Aleksanyan’s willful failure to sit for his depositions and Plaintiff’s willful failure to provide verifications to supplemental written discovery requests as ordered by the Court on April 20, 2026. A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 (“Lopez”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (Ibid.) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (Ibid.) The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (Lopez, supra, 246 Cal.App.4th at pp. 604-605.) Here, the evidence submitted shows that Defendant served Plaintiffs with Supplemental Requests for Production and Interrogatories, and that Plaintiffs provided unverified responses, forcing Defendant to file

	motions to compel the Supplemental Interrogatories and Requests for Production, and that Plaintiffs failed to provide availability for dates for their depositions after being served with deposition notices, forcing Defendant to file a motion to compel Plaintiffs' depositions. (Declaration of James N. Werner ("Werner Decl."), ¶¶ 5-6.) An Informal Discovery Conference was held on these discovery motions before the Honorable Andre De La Cruz, and on April 20, 2026, the Court ordered the verifications to the supplemental request to be provided by April 24, 2026, and Plaintiffs' depositions to be completed by May 5. (Id., ¶¶ 7-8, Ex. B.) Plaintiffs did not provide any verification for the Supplemental Interrogatories and Requests for Production by April 24, 2026, and on May 5, 2026, Plaintiff Khachatur Aleksanyan appeared four hours late but his deposition was completed, and Plaintiff Artur Aleksanyan did not appear for his deposition and a certificate of non-appearance was taken. (Werner Decl., ¶¶ 10, 13, Ex. F.) Plaintiff's counsel claims that there was a "mis-scheduling within our firm system" and that due to a miscommunication, Plaintiff Khachatur Aleksanyan did not show up for his deposition on time. (Pan Decl., ¶ 8.) There is no explanation for why Plaintiff Artur Aleksanyan did not show up for his deposition on May 5, 2026, although the parties had agreed on the date and time. (Ex. E to Werner Decl.; Pan Decl., ¶ 6) Plaintiff's counsel also claims they initiated meet and confer efforts following the filing of the instant motion. The evidence supporting this claim is an email dated August 26, 2026, although the motion was filed in May 2026. (Pan Decl., ¶¶ 10-11, Ex. 7.) Defendant's counsel denies receiving the email. (Reply Declaration of James N. Werner, ¶ 3.) Regardless, the fact remains that Plaintiff did not comply with this portion of the Court's order for the deposition of Plaintiff Artur Aleksanyan to be conducted by May 5, 2026. The Court notes that Plaintiffs' law firm has claimed miscommunication and staffing issues have led to numerous problems in this and other cases. Regardless, counsel must comply with orders of the Court, and the
--	--

		Court must take the necessary steps to ensure its orders are complied with. The Court intends to impose at least monetary sanctions against Plaintiffs and/or their counsel. Counsel should be prepared to address the appropriate amount of monetary sanctions and the appropriate type of additional sanctions.
102	Chan vs. Blueray Aquatics LLC, 2025-01524694	MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blueray Aquatics, LLC is DENIED WITHOUT PREJUDICE. Moving Attorney met the requirements of California Rules of Court, rule 9.40 except that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not “[r]egularly engaged in substantial business, professional, or other activities in the State of California” pursuant to 9.40(a)(1), (a)(2), and (a)(3). The Court notes that Counsel need not provide his exact resident address but he must identify the state of his legal residence. Moving attorney to give notice.
103	Danze vs. Danze, 2025-01522118	DEMURRERS - SUSTAINED Defendants Marcelo Danze, Manuel Soto, and Alex Danze each filed a demurrer to the complaint filed by Plaintiff Kristina Danze. Each moving defendant demurs to all causes of action alleged against him. Plaintiff did not file opposition to any demurrer. The complaint contains six causes of action: (1) breach of fiduciary duty against Defendant Marcelo, (2) fraudulent misrepresentation against all moving Defendants, (3) unjust enrichment against all moving Defendants, (4) fraudulent misrepresentation against Defendant Marcelo, (5) an accounting against all moving